IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, PRETORIA

CASE NO:

In the *ex parte* matter between:

PETER ANDREW FAUCITT (Identity Number: 520430 5708 18 5)	**APPLICANT**
And	
JACQUELINE FAUCITT (Identity Number: 570607 0898 18 1)	**FIRST RESPONDENT**
DANIEL JAMES FAUCITT (Identity Number: 820715 5300 18 2)	**SECOND RESPONDENT**
REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD (Registration Number: 2011/005722/07)	**THIRD RESPONDENT**
REGIMA SKIN TREATMENTS CC (Registration Number: 1992/005371/23)	**FOURTH RESPONDENT**
VILLA VIA ARCADIA NO 2 CC (Registration Number: 1996/004451/23)	**FIFTH RESPONDENT**
STRATEGIC LOGISTICS CC (Registration Number: 2008/136496/23)	**SIXTH RESPONDENT**
FIRSTRAND BANK LTD t/a FIRST NATIONAL BANK	**SEVENTH RESPONDENT**
ABSA BANK LIMITED	**EIGHTH RESPONDENT**
THE COMPANIES AND INTELLECTUAL PROPERTY COMMISSION	**NINTH RESPONDENT**

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PRETORIA
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NOTICE OF MOTION

TAKE NOTICE that **PETER ANDREW FAUCITT** (Identity Number: 520430 5708 18 5), hereinafter called "***the Applicant***", intends to make application on **TUESDAY 19 AUGUST 2025**, at 10h00, for an order in the following terms:

PART A

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1. Dispensing with the forms and service provided for in the Rules of the above Honourable court, and disposing of the relief prayed by way of urgency in terms of Rule 6(12)(a);

2. Pending the final adjudication of the relief sought under **PART B** of this Notice of Motion, the First and Second Respondents:

   2.1 Are interdicted and directed to surrender forthwith to the Applicant their banking credit, *and/or* cheque, *and/or* debit cards, coupled to the banking accounts of the Third to Sixth Respondents, held with the Seventh *and/or* Eighth Respondents;

   2.2 Are interdicted and restrained forthwith from opening any new banking accounts for the Third to Sixth Respondents with any financial institution/s, and from transacting thereon;

2.3 Are interdicted and restrained forthwith from applying to the Seventh *and/or* Eighth Respondents for new cards, or payment facilities on the banking accounts of the Third to Sixth Respondents;

2.4 Are interdicted and restrained forthwith from transacting on the banking accounts of the Third to Sixth Respondents, held with the Seventh *and/or* Eighth Respondents;

2.5 The First and Second respondents are interdicted and restrained from dealing with the business (and the administration thereof) of the Third to Sixth Respondents, *and/or* their employees, *and/or* their partners, *and/or* their clientèle, in any manner in which any may sustain any prejudice;

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2.6 The Applicant is authorised to take control of the financial affairs of the Third to Sixth Respondents, and to that end is entitled to immediately begin transacting on those accounts, for those corporations, to the exclusion of the First, and Second Respondents;

2.7 The Applicant is authorised to appoint necessary experts, including the accountant cited in the founding affidavit, at the cost of the Third to Sixth Respondents, so that a proper forensic investigation may be conducted into their affairs, and into the affairs of the First and Second Respondents relating to payments made by the Third to Sixth Respondents, and to that end to have unfettered insight into the First

and Second Respondent's financial affairs, and into the financial affairs of the Third to Sixth Respondents ;

2.8 The First and Second Respondents are interdicted and directed to participate in the forensic investigation of the Third to Sixth Respondents, and to that end:

2.8.1 Are interdicted and restrained from concealing or destroying any documentary (and electronic) records pertaining to the financial administration of the Third to Sixth Respondents;

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2.8.2 Are interdicted and directed to surrender forthwith to the Applicant all documentation (electronic, and otherwise) within their possession relating to the administration (financial and otherwise) of the Third to Sixth Respondents, and all login details and passwords to any banking and other online facilities relating thereto; *and to*

2.8.3 Are interdicted and directed to answer all questions put to them in regard to the forensic investigation, by the Applicant, and the experts appointed by him, honestly, and forthrightly;

3. Should **PART A** of the Notice of Motion not be opposed:

3.1 No order as to costs;

3.2 The Applicant is permitted to supplement his papers, as he may deem necessary, for the purposes of **PART B** below;

4. In the event that **PART A** of this Notice of Motion is opposed:

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4.1 The costs thereof are reserved for determination under **PART B** of the Notice of Motion;

4.2 The Applicant, and the opposing Party/Parties are permitted to supplement their papers, as they may deem necessary, for the purposes of **PART B** below;

5. **PART B** shall be adjudicated on a date, and at a time appointed by the Registrar;

6. The Applicant is directed to serve this application on the Respondents simultaneously with the service of this Order upon them;

7. Further *and/or* alternative relief;

PART B

8.

8.1 The First *and/or* Second Respondents are declared delinquent as envisaged in Section 162(5) of the Companies Act, No 71 of 2008 — and Section 69(8)(a) read together with Section 47 of the Close Corporations Act, No 69 of 1964 —; *alternatively*

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8.2 The First *and/or* Second Respondents are placed under probation as envisaged in Section 162(7)(a), and (8) of the Companies Act, No 71 of 2008;

9. Should **PART B** of the Notice of Motion not be opposed, no order as to costs;

10. Should **PART B** of the Notice of Motion be opposed, the opposing Party/Parties shall pay the costs of this application on the scale as between attorney and client, including the costs attendant upon the appointment of counsel, on Scale C;

11. Further *and/or* alternative relief.

AND TAKE NOTICE that the accompanying affidavit of **PETER ANDREW FAUCITT** will be used in support of this application.

TAKE NOTICE FURTHER that the Applicant has appointed:

ELLIOTT ATTORNEYS INC.

at the address given below, as the addresses at which he will accept notices and service of all process in these proceedings, including the email address set out therein.

TAKE NOTICE FURTHER that if you intend opposing Part B of this application you are required:

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(a) to notify applicant's attorney in writing thereof within 10 (ten) days of receipt hereof; (b) and within 15 (fifteen) days of receipt thereof, after you have so given notice of your intention to oppose the application, to file your answering affidavits, if any; and further that you are required to appoint in such notification an address referred to in Rule 6(5)(b) at which you will accept notice and service of all documents in these proceedings.

AND TAKE NOTICE that application will be made on **19 AUGUST 2025** at 10:00, or as soon thereafter as counsel for the applicants may be heard.

KINDLY ENROL THIS APPLICATION FOR HEARING ACCORDINGLY

DATED AT PRETORIA ON 13th OF AUGUST 2025

ELLIOTT ATTORNEYS INC
APPLICANT'S ATTORNEYS
OFFICE 12
GARSFONTEIN OFFICE PARK
645 JACQUELINE DRIVE
GARSFONTEIN
PRETORIA
TEL:012 012 5067
EMAIL: keegan@elliottattorneys.co.za
REF: KRE/MM/KF0019

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TO: THE REGISTER OF THE ABOVE HONOURABLE COURT
PRETORIA

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